

Safeguarding & Protection of Vulnerable Adults

COMPREHENSIVE POLICY — HSE NATIONAL POLICY & HIQA COMPLIANT

1 PURPOSE

To ensure a safe, respectful, and protective environment for all adults using services. This policy sets out procedures for prevention, identification, reporting, and management of safeguarding concerns in compliance with the Health Act 2007, HIQA National Standards, and the HSE Safeguarding Vulnerable Persons at Risk of Abuse Policy (2014).

2 SCOPE

- ✓ All residential and supported living settings; all full-time, part-time, relief, agency, and voluntary staff
- ✓ Contractors and third parties with direct/indirect contact with service users
- ✓ Adults with intellectual/physical disabilities, mental health needs, age-related vulnerabilities, complex needs
- ✓ **Excludes:** Children under 18 (covered under Child Safeguarding Policy)

3 DEFINITIONS OF ABUSE

- ⚠ **Physical:** Hitting, slapping, pushing, misuse of medication, restraint, force-feeding
- ⚠ **Sexual:** Non-consensual activity, inappropriate touching, exploitation, indecent exposure
- ⚠ **Psychological/Emotional:** Intimidation, threats, humiliation, isolation, coercive control
- ⚠ **Financial/Material:** Theft, fraud, misuse of funds, pressure around wills or property
- ⚠ **Neglect:** Failure to provide food, hygiene, medical care, or basic needs
- ⚠ **Institutional:** Poor care practices, rigid routines, lack of person-centred planning
- ⚠ **Discriminatory:** Harassment based on age, gender, race, religion, disability, or orientation
- ⚠ **Domestic:** Controlling, coercive behaviour between partners or family members
- ⚠ **Self-neglect:** Person neglects own health, hygiene, or environment
- ⚠ **Cyber:** Online threats, grooming, bullying, scamming via digital devices

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RESPONSIBILITIES, DESIGNATED OFFICER & REPORTING

4 RESPONSIBILITIES

Registered Provider & Director:

- ✓ Embed safeguarding in all policies, governance systems; appoint Designated Safeguarding Officer (DSO)
- ✓ Maintain oversight of all reports; ensure training, reporting, and record-keeping systems

Designated Safeguarding Officer (DSO):

- ✓ Receive/respond to all concerns; assess immediate risk; take protective action
- ✓ Complete Preliminary Screening Form (PSF); liaise with HSE Safeguarding Team
- ✓ Available at all times including out-of-hours; receives annual specialist training

Person in Charge (PIC):

- ✓ Promote safeguarding in daily leadership; ensure care plans include safeguarding risk assessments
- ✓ Monitor for institutional risk factors; escalate concerns to DSO without delay

All Staff & Volunteers:

- ✓ Be alert to signs of abuse; report concerns immediately to DSO or PIC
- ✓ Mandatory reporters — failure to report may result in disciplinary action and legal offence
- ✓ Maintain confidentiality; attend all safeguarding training and refreshers

5 REPORTING PROCEDURES

- ⚠ **Step 1:** Stay calm, listen, reassure — do not promise confidentiality or ask leading questions
- ⚠ **Step 2:** Report immediately to DSO/PIC; if immediate danger, contact emergency services
- ⚠ **Step 3:** Complete Safeguarding Concern Form within 24 hours (factual, not opinion-based)
- ⚠ **Step 4:** DSO completes PSF and liaises with HSE Safeguarding Team
- ⚠ **Step 5:** Escalate to HIQA (serious incidents) or An Garda Síochána (criminal activity)

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RESPONDING, TRAINING & RESIDENT SUPPORT

6 RESPONDING TO ALLEGATIONS

- ✓ Ensure person is safe; do not confront alleged perpetrator; report to DSO without delay
- ✓ DSO assesses risk, determines emergency intervention; notifies senior management and external teams
- ✓ Staff member may be temporarily reassigned or suspended pending investigation (per disciplinary policy)
- ✓ Internal/external investigations follow recognised safeguarding protocols and timeframes

7 TRAINING

- ✓ **Mandatory:** All staff (including relief, agency, volunteers) — at induction and refresher every 2 years
- ✓ **Content:** Types/signs of abuse, responding to disclosures, reporting pathways, legal obligations, whistleblowing, human rights, case studies
- ✓ **Specialist:** Additional training for DSOs, PICs, and staff supporting complex needs
- ✓ Attendance recorded in individual files; gaps flagged and must be addressed before unsupervised care

8 SUPPORT FOR RESIDENTS

- ✓ All responses prioritise resident's wishes, dignity, and safety; compassion regardless of circumstances
- ✓ Advocacy offered — especially where capacity or communication barriers exist
- ✓ Individual removed from harm; emotional reassurance and named contact staff provided
- ✓ Access to independent advocacy, psychological/counselling support, legal/social work, medical assessment
- ✓ Residents kept informed at every stage in a manner appropriate to their understanding

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CONFIDENTIALITY, CONSENT, CONTACTS & REVIEW

9 CONFIDENTIALITY & DATA PROTECTION

- ✓ Information shared on need-to-know basis only; records stored securely, authorised access only
- ✓ Staff cannot promise absolute confidentiality if risk of abuse exists
- ✓ GDPR and Data Protection Act 2018 compliant; residents may access records unless safety risk
- ✓ Protected Disclosures Act 2014 protects good-faith reporters from retaliation

10 CONSENT & CAPACITY

- ✓ **Presumption of capacity:** Every adult presumed capable unless proven otherwise
- ✓ Informed consent: specific, voluntary, documented; communication tailored to individual needs
- ✓ Capacity assessments per Assisted Decision-Making (Capacity) Act 2015 — time- and issue-specific
- ✓ Where capacity lacking: decisions in best interest, least restrictive option; consult family/advocates
- ✓ **Important:** Abuse may occur even with consent — always report if coercion suspected

11 EXTERNAL CONTACTS

- ✓ **HSE Safeguarding & Protection Team:** Receives referrals via Preliminary Screening Forms
- ✓ **HIQA:** Notified for serious incidents; submissions via portal within 3 working days
- ✓ **An Garda Síochána:** Criminal offences or serious risk of harm
- ✓ **Tusla:** If children involved (CPWRF form); **NAS:** National Advocacy Service

12 POLICY REVIEW & MONITORING

- ✓ Reviewed annually by Registered Provider and DSO; earlier for legislative changes or serious incidents
- ✓ Monitored via internal audits, supervision records, training logs, complaints/incident reviews
- ✓ Version-controlled, signed, archived; updates communicated to all staff